# Exhibit A

**BOARD OF ETHICS**
**OF THE CITY OF PHILADELPHIA**

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| **J. Shane Creamer, Jr.** | : | |
| **Executive Director** | : | |
| **Board of Ethics** | : | |
| **of the City of Philadelphia** | : | |
| 1515 Arch Street, 18th Floor | : | |
| Philadelphia, PA 19102 | : | |
| | : | **Matter No:** 2510ET25 |
| v. | : | |
| **Ryan Boyer** | : | |
| [redacted] Vine Street | : | |
| Philadelphia, PA [redacted] | : | |
| rboyer@ldcphilly.org | : | |

**HEARING OFFICER'S REPORT & RECOMMENDATION**

## I. Introduction

On October 23, 2025, J. Shane Creamer, Jr., Executive Director of the Board of Ethics, filed a Notice of Administrative Enforcement Proceeding ("Enforcement Notice") against Ryan Boyer ("Respondent"), a member of the Tax Review Board. The Enforcement Notice alleges that Respondent violated the Philadelphia Code by failing to file timely a Statement of Financial Interest as required by Philadelphia Code Section 20-610 and Board Regulation No. 3.

It is undisputed that Respondent was a member of the Tax Review Board ("TRB") during calendar year 2025 and that the Philadelphia Code and Board of Ethics regulations require members of the TRB to file an annual Statement of Financial Interest ("SFI") no later than May 1 of each calendar year that they hold office and by May 1 of the calendar year after they leave office. It is undisputed that Respondent did not file his SFI for 2024 until August 8, 2025, despite several Board reminders of his overdue filing.

## II. Procedural History

The Executive Director of the Board of Ethics commenced this enforcement action on October 23, 2025, by filing a Notice of Administrative Enforcement Proceeding in which he alleged that Respondent violated Philadelphia Code Section 20-610, as interpreted by Board of Ethics regulations, when he failed to file the required Statement of Financial Interest on or by May 1, 2025. The Enforcement Notice was served on Respondent on October 23, 2025, via electronic mail with delivery confirmation to rboyer@ldcphilly.org. (Proof of Service of Notice of Admin. Enforcement Proceeding).

The Hearing Officer issued Procedural Instructions to the parties on November 12, 2025, using the same email address for Respondent. The Procedural Instructions explained the Board's administrative enforcement proceeding process and set a deadline of November 25, 2025, for Respondent to file a Response to the Enforcement Notice. The Procedural Instructions advised Respondent of the importance of filing a Response to the Enforcement Notice by November 25, 2025, and informed him that if he failed to file a response, he would waive his right to have a hearing in this matter.

Respondent did not respond to the Enforcement Notice. Because Respondent failed to respond, he waived his opportunity for a hearing. Bd. Reg. 2, ¶ 2.14 (c). On December 4, 2025, the Hearing Officer issued a Briefing Order to the parties which was served on the Executive Director and on the Respondent via email and via U.S. Mail with delivery confirmation to the address listed by Respondent on his 2024 Statement of Financial Interest (the Vine Street address listed in the caption above). In accordance with the Procedures for Administrative Enforcement Proceedings that Supplement Regulation No. 2, the Executive Director may file a brief in support of the Enforcement Notice if a respondent does not request a hearing. The Briefing Order required the Executive Director to file his brief on or by December 10, 2025. The Briefing Order

further gave the Respondent the right to file a responsive brief within fourteen days of service of the Executive Director's brief.

The Executive Director filed a Brief in Support of the Enforcement Notice on December 5, 2025, and served it on Respondent via email. The Briefing Order stated that Respondent had fourteen days following service of the Executive Director's Brief, which gave Respondent until December 19, 2025, in which to file a responsive brief. Respondent failed to file a responsive brief.

The Hearing Officer then issued a Supplemental Briefing Order to the parties on February 4, 2026 (again serving Respondent via email and U.S. Mail with delivery confirmation), directing the Executive Director to file a Supplemental Brief by February 18, 2026, that provided additional information about communications with Respondent prior to the filing of the Enforcement Notice. The Supplemental Briefing Order also gave Respondent an opportunity to respond to the Executive Director's Supplemental Brief.

On February 18, 2026, the Executive Director filed a Supplemental Brief, which he served on Respondent via email and U.S. Mail. The Supplemental Briefing Order stated that Respondent had fourteen days following service of the Executive Director's Brief, which gave Respondent until March 4, 2026, in which to file a responsive brief. Respondent failed to file a responsive brief.

After the deadline for responding to the Supplemental Brief, the mailed copy of the Supplemental Briefing Order was returned to the Board's office by the United States Postal Service and marked as "unclaimed." Subsequently, on April 13, 2026, the Hearing Officer served copies of the Supplemental Briefing Order and the Executive Director's Supplemental

Brief on Respondent via hand delivery.[1] Personal delivery to Respondent was made at his place of business at the Laborer's District Council offices.[2] The accompanying cover letter gave Respondent fourteen calendar days from receipt of the letter (so until April 28, 2026) to file a response to the Executive Director's Supplemental Brief. The letter noted in bold text that "[t]his is the last opportunity for [the Respondent] to participate in this enforcement action before the Hearing Officer makes a recommendation to the Board of Ethics." The letter explained that future correspondence would be via regular U.S. Mail and (also in bold) warned Respondent that "it is your responsibility to provide accurate contact information so that all correspondence reaches you without delay." Respondent did not file a response to the Supplemental Brief and did not contact Board staff.

On June 2, 2026, the Hearing Officer issued an Order to Close the Administrative Record (serving Respondent via U.S. mail to his Vine Street address and the office address where he was personally served, as well as via email), notifying the parties that the Administrative Record in this case would close on June 12, 2026. This Order informed the parties that once the record closed, they would not be able to present new facts or legal arguments, and there would be no further opportunity to be heard. Under this Order, the parties were given until 5:00 p.m. on June 12, 2026, to file written objections to the closure of the record. Neither party filed an objection nor otherwise responded to the Order closing the record.

[1] While it appeared that the email copy of the Supplemental Briefing Order was delivered, the Hearing Officer directed Board staff to hand-deliver the Supplemental Briefing Order and Executive Director's Brief to Respondent, as stated in the cover letter, "to ensure that you have received them and may respond as you deem appropriate."
[2] Hand delivery was attempted at the Vine Street address but was unsuccessful. Service affidavits showing both the unsuccessful and successful deliveries were provided via email to the parties and will be part of the final docket.

## III. Facts

Respondent was at all relevant times a member of the TRB, including between January 1, 2025, and April 1, 2025.[3] The TRB is responsible for reviewing taxpayer challenges to most City tax assessments or bills.

The Ethics Code requires certain individuals to file a Statement of Financial Interest. Philadelphia Code § 20-610(1). Members of the Tax Review Board are required to file an SFI by May 1 in any year in which they hold office and by May 1 of the year after they leave such office. Phila. Code § 20-610(1), Bd. Reg. 3, Para. 3.5(y). Covered officials who take office after April 1 must file within 30 days of taking office. Phila. Code § 20-610(1), Bd. Reg. 3, Para. 3.7(b). Accordingly, any member of the TRB who served between January 1, 2025, and April 1, 2025, must file a Statement of Financial Interest for 2024 by May 1, 2025. *Id.*

Respondent did not file an SFI by May 1, 2025. On July 2, 2025, Alex Kramer, Investigative Analyst for the Board of Ethics, sent a letter by email to Respondent advising him that he was required to file a Statement of Financial Interest by May 1 and that the Board had not yet received his 2024 Statement of Financial Interest. The letter informed Respondent that he had "30 days to cure this defect," after which the matter would be referred to the Board's Enforcement division for appropriate action. (Decl. of Alexander Kramer at ¶10, Executive Director's Supplemental Brief ("ED's Supp. Br.") at Ex. A.)

When Board staff did not hear from Respondent, Mr. Kramer sent a follow-up letter by email to Respondent on July 29, 2025, repeating the same information contained in the previous email correspondence. (ED's Supp. Br., Ex. A at ¶11-13.) This letter also informed Respondent

[3] Publicly posted videos of the TRB's public meetings show that Respondent attended public meetings of the TRB on January 7 and 16, Feb 11, and March 25, 2025. *See* TRB Public Meeting Recordings *available at* https://www.youtube.com/playlist?list=PL3PO7BmRkHlisZLB4SXeHH18313DuWSJd.

that after August 2, 2025, the matter could only be resolved through the Board's Enforcement Division and the failure to file the required SFI could result in a civil monetary penalty of up to $2,000. (*Id.* at ¶14.)

The forgoing emails and compliance letters sent by Mr. Kramer were all sent to Respondent to the email addresses of rboyer332@yahoo.com and rboyer@ldcphilly.org.[4] Mr. Kramer avers that he did not receive any bounce-back notifications from either email address. *Id*. at ¶18. Further, Mr. Kramer states that he never received a response from Respondent even though his communications all contained his email address, the Board's physical address, and a telephone number at which Mr. Kramer could be reached. *Id*. at ¶19.

On August 8, 2025, Respondent filed a Statement of Financial Interest for calendar year 2024. (Enforcement Notice at ¶6.)

As previously described above in the procedural history section, Respondent did not participate in this adjudication process even after being personally served with an Order issued by the Hearing Officer.

## IV. Governing Law

The governing law applicable to financial disclosure requirements of members of the TRB is set forth in Philadelphia Code Sections 20-601(4) (defining Board or commission member), 20-606(1)(e) (outlining the powers and duties of the Board related to financial disclosure), 20-610 (Statements of Financial Interest), 20-612 (Penalties and Other Consequences of Violations), 20-1302 (Penalties for Other Violations; Mitigating and Aggravating Factors), and Board Regulation No. 3. These provisions, along with the procedural

[4] Mr. Kramer avers that on July 29, 2025, he also forwarded the July 29 email and letter addressed to Mr. Boyer to another individual named Dione Frith, who had been identified as Mr. Boyer's assistant. The email address used for Ms. Frith was dfrith@ldcphilly.org. (ED's Supp. Br., Ex. A at ¶15-16.)

rules set out in the Charter and Code, are included in the Board's Final Determinations in previous enforcement matters and need not be repeated here. *See Exec. Dir. v. Bullock*, Matter No. 2510ET21 at 8-11 (Apr. 24, 2026) *available at* https://ethics.pub/2510ET21FD and *Exec. Dir. v. Dukes*, Matter No. 2510ET24 (June 18, 2026) *public posting pending*.

## V. Application of SFI Filing Requirements to this Enforcement Proceeding

Philadelphia Code Section 20-610(1)(e) and Board Regulation No. 3, Paragraph 3.5(y) require members of the TRB to file an SFI disclosing specific financial information for each year in which they served. Under Philadelphia Code Section 20-610(1) and Board Regulation No. 3, Paragraph 3.7(a) and (b), the SFI must be filed by May 1 of each year unless the filer takes office after April 1.

Respondent has not disputed the facts asserted by the Executive Director in the Enforcement Notice or in his filed Briefs. Accordingly, it is undisputed that Respondent was a member of the TRB in January 2025, that he was required to file an SFI by May 1, 2025, that he failed to do so, and that he filed his SFI untimely on August 8, 2025.

## VI. Recommendation

The Executive Director alleges that Respondent violated the Ethics Code by failing to file his 2024 SFI by May 1, 2025. (Enforcement Notice at ¶8.) To establish a *prima facie* case that Respondent violated the SFI filing requirement for 2024, the Executive Director must establish by a preponderance of the evidence that Respondent held a City position listed in Philadelphia Code Section 20-610(1) or Subpart B of Board Regulation No. 3, that he served in that position at some point between January 1 and April 1, 2025, and that he did not file an SFI by May 1, 2025.

It is undisputed that Respondent served on the TRB in 2025 prior to April 1 and was required to file a 2024 SFI by May 1, 2025. Respondent did not file a 2024 SFI until August 8, 2025. (Enforcement Notice at ¶6.) Accordingly, I find that the Executive Director has established a *prima facie* showing that Respondent violated his SFI filing requirement.

Respondent declined to participate in this enforcement proceeding – even after hand delivery of an Order of the Hearing Officer – or to dispute the facts as alleged by the Executive Director. Where a respondent does not request a hearing, the Board may make a final determination based on undisputed allegations in the Enforcement Notice or other evidence submitted by the Executive Director in support of the Enforcement Notice. *See* Bd. Reg. No. 2, ¶2.20(b); *Procedures for Admin. Enf. Proceedings that Supplement Bd. Reg. 2* at Item 5. Based upon the undisputed evidence presented in this case, as set forth in the Enforcement Notice and the Brief and Supplemental Brief filed by the Executive Director, I find that Respondent was required to file his SFI by May 1, 2025, and that he failed to do so in violation of the Philadelphia Code, Section 20-610, as interpreted by Board Regulation No. 3.

## VII. Imposition of Penalty

Having concluded that Respondent violated his SFI filing requirement, I am required to recommend an appropriate penalty. The Ethics Code provides for civil monetary penalties under Section 20-612, which incorporates by reference Philadelphia Code Chapter 20-1300. Section 20-1302 provides for a base penalty of $1,000 that may be increased by aggravating factors or decreased by mitigating factors. Section 20-1302(2) requires the Board to make specific factual findings regarding the presence or absence of mitigating and aggravating factors. *See Bullock*, 2510ET21 at 13. If the Board finds a violation, it must impose a penalty of no less than $250 per violation. *Id.* (applying Section 20-1302(2)(b)).

Mitigating factors include good faith effort to comply, prompt corrective action, and prompt self-reporting. Phila. Code. § 20-1302(1)(a); Bd. Reg. 3, Para. 3.19; *see also Bullock*, at 14-15. The Board may consider additional mitigating factors in order to promote justice, consistent with the overall objectives of the Board. *Dukes* at 20. Aggravating factors are intent, repeat violation, and obstruction of investigation. Phila. Code. § 20-1302(1)(b); Bd. Reg. 3, Para. 3.19.

In this case, the Executive Director requests that the Board impose a penalty of $1,000 for Respondent's SFI disclosure violation. (*See* Enforcement Notice at 4.) Neither party has presented any evidence to support either an enhancement or reduction of the penalty, and therefore the Board may assess the requested $1,000 penalty. The Board, however, retains the discretion to apply mitigating and aggravating factors based on the evidence before it. Accordingly, I will examine whether the limited facts presented in this case support any mitigating or aggravating factors.

***Aggravating Factors***

Neither party has alleged or presented any evidence of aggravating factors in this case. Accordingly, I find no aggravating factors and turn to consideration of mitigating factors.

***Mitigating Factors***

*Good faith effort to comply*

The Board has previously held where the law requires filing by a date certain, a good faith effort to comply necessarily requires some attempt to timely fulfill the disclosure obligation. *Bullock* at 15. Thus, an untimely disclosure – particularly one made weeks or months after the deadline – without any proffered justification for delay is not a good faith effort to comply. *Id.*

There is no evidence presented in this case that Respondent attempted to file by the deadline of May 1, 2025. Accordingly, there is no basis upon which to find that Respondent made a good faith effort to comply such that the monetary penalty should be mitigated. To be clear, this finding does not suggest that Respondent acted in *bad* faith. It simply reflects the undisputed fact that there is no evidence that Respondent made any attempt to comply by the required filing deadline.

*Prompt corrective action*

The Board has held that the timeframe for corrective action for a filing is necessarily distinct from the initial filing deadline. *Bullock* at 15. It has further held that whether a respondent acted "promptly" is measured from the point at which they knew of the violation or defect and understood how to correct it. *Id.* at 15-16.

The Board's Investigative Analyst, Alexander Kramer, notified Respondent that his SFI was overdue on July 2, 2025. (Supp. Br. at Ex. A, ¶8.) He sent additional notifications to Respondent on July 29, 2025. (*Id.* at ¶11.) These communications reminded Respondent that if he did not file by August 2, 2025, the matter would be turned over to Enforcement. Respondent did not respond to any of these communications and did not file his 2024 SFI until August 8, 2025.

Respondent has not presented any evidence to suggest that he lacked sufficient information to take prompt corrective action. Based on the evidence, I find that Respondent had notice of his deficient disclosure status, as well as of the date by which his non-filing would be referred to Enforcement. In short, he had notice of the date by which he could take corrective action and avoid a monetary penalty. Despite that, Respondent failed to respond to the Board's notices and failed to file his SFI by the corrective deadline of August 2, 2025, to avoid a

monetary penalty. Therefore, while Respondent's filing of his 2024 SFI on August 8, 2025, was corrective, I find that it was not sufficiently prompt to warrant mitigation of a monetary penalty.

*Prompt self-reporting*

The Philadelphia Code describes self-reporting as reporting of a violation to the Board of Ethics. There is no evidence in the record that Respondent at any time contacted Board staff to self-report. Thus, the evidence does not support the application of this factor to mitigate a monetary penalty.

*Other mitigating factors*

Respondent has not presented any evidence or offered any arguments that would support an additional basis for mitigation of a monetary penalty. Therefore, I have not considered any additional mitigating circumstances.

## VIII. Conclusion

The undisputed facts in this enforcement proceeding support a violation of Philadelphia Code Section 20-610 and Board Regulation No. 3. Therefore, I recommend that the Board of Ethics find that the Respondent has violated his 2024 SFI filing requirement. Additionally, the evidence presented does not support the application of any mitigating or aggravating factors. Accordingly, I recommend that the Board of Ethics impose upon Respondent a civil monetary penalty in the amount of $1,000 for his violation of Philadelphia Code Section 20-610.

Respectfully submitted,

Date: July 14, 2026

*/s/ Louis S. Rulli, Esq.*
Louis S. Rulli, Esq.
Hearing Officer